INTERNAL DAMAGES WORKSHEET

Nforbi v. Ross Stores, Inc., et al.

NOT PART OF THE COMPLAINT — DO NOT FILE THIS DOCUMENT

Why this is separate

Code of Civil Procedure § 425.10(b) prohibits stating the amount of damages demanded in a complaint that seeks damages for personal injury. Emotional distress, humiliation, and mental suffering damages fall within that bar. Civil Code § 3294(e) separately prohibits stating a punitive damages amount in the pleading. Putting dollar figures for these items in the complaint body invites a motion to strike and can create a filing defect.

The complaint itself therefore does two things instead: it alleges the amount in controversy exceeds $35,000 (establishing unlimited civil status), and it states only the dollar figure California expressly permits — the $4,000 Unruh statutory minimum.

Use the figures below for: the CM-010 cover sheet analysis, a statement of damages if one is ever requested under CCP § 425.11, a pre-litigation or post-filing demand letter, settlement conference statements, and mediation briefs.

Itemized valuation of harm

#	Item of harm	Basis in pleaded facts	Valuation
1	Public humiliation and embarrassment in front of Ross patrons	Detained at the front of the store near registers and exit; witnessed by Doe 2 and at least one couple standing behind Plaintiff (¶¶ 74–77, 100)	**$75,000**
2	Severe emotional distress — anxiety, distress, shame, anger, sleep disturbance	¶¶ 98, 101, 152–153	**$125,000**
3	Loss of dignity and injury to self-respect	¶ 102	**$60,000**
4	Ongoing anxiety and behavioral avoidance in retail settings	¶ 103	**$45,000**
5	Denial of the right to shop and depart on equal terms; deprivation of liberty of movement during the approximately three-minute detention	¶¶ 45–61, 104, 130	**$40,000**
	Subtotal — actual damages		**$345,000**
6	Unruh treble multiplier, Civ. Code § 52(a) (up to 3× actual)	§ 52(a)	**up to $1,035,000**
7	Unruh statutory floor, § 52(a) — $4,000 per offense	Recoverable regardless; not additive to a larger trebled award	**$4,000 min.**

#	Item of harm	Basis in pleaded facts	Valuation
8	Punitive damages, Civ. Code § 3294	Amount not pleaded; determined at trial	**TBD**
9	Attorney's fees and costs, Civ. Code § 52(a)	Recoverable if represented	**TBD**

Bottom line for the CM-010 and for any demand: total relief sought exceeds $1,000,000, and unquestionably exceeds the $35,000 unlimited-civil threshold.

Honest calibration note

These are aggressive opening figures, which is what was requested and is normal in a demand posture. Be aware of how they will be tested:

• **The strongest number is the trebling.** Unruh's 3× multiplier does a lot of work here and is statutory, not speculative.

• **The weakest number is item 4.** Ongoing avoidance behavior is real but is the item most likely to draw a demand for therapy records or a defense IME. Only advance it if prepared to substantiate it.

• **A three-minute, no-touching, no-police, no-search encounter is on the lower end of the false-imprisonment severity range.** The value in this case comes from the Unruh discrimination claim and the trebling, not from the confinement itself. Anchor any demand on the civil rights violation.

• **Seeking treatment matters.** If no therapist or physician has been consulted about the distress, "severe emotional distress" for the IIED count is defensible on these facts but will be contested. Contemporaneous documentation — even a dated personal journal entry starting now — meaningfully strengthens items 1–4.

Prepared as a drafting aid in connection with the draft Verified Complaint dated August 26, 2026. Not legal advice. Figures are proposed valuations only and are not binding admissions of value; final amounts remain subject to proof at trial or negotiation.